

25SMCV02233 25SMCV02233

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25SMCV02233 Hearing Date: August 5, 2026 Dept: M

CASE NAME: Ways v. Mercedes-Benz

USA LLC, et al.

CASE NO.: 25SMCV02233

MOTION: Motion

for Attorneys' Fees

HEARING DATE: 8/5/2026

Legal

Standard

With respect to attorney fees

and costs, unless they are specifically provided for by statute (e.g., CCP §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).) The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; Gunlock Corp. v. Walk on Water, Inc.

(1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]" (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys' fees award].) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

Analysis

Plaintiff Eva Ways moves for an order awarding her attorney's fees and costs in the amount of \$6,497.95 against Defendant Mercedes-Benz USA LLC. The motion is unopposed.

Plaintiff shows that the parties settled this action early into the litigation. There is no dispute that Plaintiff is entitled to reasonable expenses as the prevailing party under Civil Code section 1794(d). Using the lodestar method, the requested fees are verified and facially reasonable, except for some of the anticipated fees connected with reviewing the opposition and drafting the reply to this unopposed motion.

Accordingly, the motion is GRANTED in the total amount of \$5,547.95.